



CHAPTER xxxix.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924. [30th June 1925.]

WHEREAS the Right Honourable Arthur Henderson one of His Majesty's Principal Secretaries of State made the Provisional Order set out in the Schedule hereunto annexed under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 :

A.D. 1925

—

5 Edw. 7.

c. 23.

14 & 15

Geo. 5. c. 20.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as set out in the Schedule hereunto annexed is hereby confirmed.

Order in
Schedule
confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1925.

Short title.

[Ch. xxxix.] *Provisional Order* [15 & 16 GEO. 5.]
(*Marriages*) *Confirmation Act*, 1925.

A.D. 1925.

S C H E D U L E.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas the new church of All Saints in the parish of Goulceby in the county of Lincoln and diocese of Lincoln was duly consecrated for the performance of divine service on the twenty-first day of January one thousand nine hundred and eight and the said church was intended to be substituted for the ancient parish church of All Saints Goulceby but it does not appear that any deed of substitution in accordance with the provisions of 8 & 9 Vict. c. 70 and 19 & 20 Vict. c. 55 was executed until the fifteenth day of May one thousand nine hundred and twenty-four or that the new church of All Saints has ever been licensed for the solemnization of marriages :

And whereas divers marriages have nevertheless been solemnized in the said church before the fifteenth day of May one thousand nine hundred and twenty-four :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of marriages solemnized at the said church of All Saints Goulceby and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Arthur Henderson one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized before the fifteenth day of May one thousand nine hundred and twenty-four in the church of All Saints in the parish of Goulceby in the county of Lincoln and diocese of Lincoln shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :

[15 & 16 GEO. 5.] *Provisional Order* [Ch. xxxix.]
(*Marriages*) *Confirmation Act*, 1925.

- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage : A.D. 1925.
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- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this fifth day of November one thousand nine hundred and twenty-four.

ARTHUR HENDERSON.

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